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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:18-cv-02076-DDD-CYC

Whitson v. Hanna
Assigned to: Chief Judge Daniel D. Domenico
Referred to: Magistrate Judge Cyrus Y. Chung
Case in other court: USCA, 23-01084
Cause: 42:1983 Civil Rights Act

Date Filed: 08/15/2018
Date Terminated: 01/28/2025
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff**Hollis Ann Whitson***as**guardian ad litem*

Peatinna Biggs

represented by **David Nathan Fisher**
Fisher & Byrialsen PLLC
4600 South Syracuse Street
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ATTORNEY TO BE NOTICED

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ATTORNEY TO BE NOTICED

V.

Defendant**Thomas Hanna***Former Sheriff, in his official capacity*

represented by **Matthew William Buck**
Red Law
201 Milwaukee Street
Denver, CO 80206
720-771-4511

Email: matt@red.law
ATTORNEY TO BE NOTICED

Defendant

Thomas (I) Hanna
in his individual capacity

represented by **Matthew William Buck**
(See above for address)
ATTORNEY TO BE NOTICED

Plaintiff

Peatinna Biggs
TERMINATED: 02/27/2020

represented by **Kaitlin Fleur Nares**
Zinda Law Group PLLC
600 17th Street
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Email: kaitlin@nareslawgroup.com
TERMINATED: 03/14/2019
LEAD ATTORNEY

David Nathan Fisher
(See above for address)
ATTORNEY TO BE NOTICED

Hollis Ann Whitson
(See above for address)
ATTORNEY TO BE NOTICED

Jane Holse Fisher-Byrialsen
(See above for address)
ATTORNEY TO BE NOTICED

V.

Defendant

Deputy Larry Neugebauer
in his official capacity
TERMINATED: 04/17/2020

represented by **Jonathan N. Eddy**
SGR, LLC
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ATTORNEY TO BE NOTICED

Defendant

Larry (I) Neugebauer
in an individual capacity
TERMINATED: 04/17/2020

represented by **Jonathan N. Eddy**
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Carlton Britton
Sheriff
TERMINATED: 04/17/2020

represented by **Jonathan N. Eddy**
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

**Board of County Commissioners of the
County of Sedgwick, The**
TERMINATED: 04/17/2020

represented by **Eric Michael Ziporin**
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Fax: 303-320-0210
Email: trice@sgrllc.com
TERMINATED: 06/21/2021

Defendant

County of Sedgwick, The
TERMINATED: 01/07/2019

represented by **Jonathan N. Eddy**
(See above for address)
ATTORNEY TO BE NOTICED

Thomas S. Rice
(See above for address)
TERMINATED: 06/21/2021

Defendant

Sedgwick County Sheriff's Department
TERMINATED: 01/07/2019

represented by **Eric Michael Ziporin**
(See above for address)
ATTORNEY TO BE NOTICED

Jonathan N. Eddy
(See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
08/15/2018	<u>1</u>	COMPLAINT against Former Sheriff Thomas Hanna, The County of Sedgwick (Filing fee \$ 400, Receipt Number 1082-6248261) Attorney Kaitlin Fleur Nares added to party Peatinna Biggs(pty:pla), filed by Peatinna Biggs. (Attachments: # <u>1</u> Civil Cover Sheet Civil Cover Sheet, # <u>2</u> Summons Sedgwick Summons, # <u>3</u> Summons Hanna Summons)(Nares, Kaitlin) (Entered: 08/15/2018)
08/15/2018	2	Case assigned to Judge Wiley Y. Daniel and drawn to Magistrate Judge S. Kato Crews. Text Only Entry. (rvill,) (Entered: 08/15/2018)
08/15/2018	<u>3</u>	SUMMONS issued by Clerk. (Attachments: # <u>1</u> Summons, # <u>2</u> Magistrate Judge Consent Form) (rvill,) (Entered: 08/15/2018)

08/20/2018	4	ORDER REFERRING CASE to Magistrate Judge S. Kato Crews for non-dispositive matters. That pursuant to 28 U.S.C. Section 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this matter is referred to the assigned United States Magistrate Judge is designated to conduct proceedings in this civil action as follows: (1) Convene a scheduling conference under Fed.R.Civ.P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR 16.2. (2) Conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause. (3) Hear and determine pretrial matters, including discovery and other non-dispositive motions. (4) Alternative Dispute Resolution Authority: Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge, or on the request of the parties by motion, the court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. It is further ORDERED that parties and counsel shall be familiar and comply with the above judge's requirements found at www.cod.uscourts.gov. By Judge Wiley Y. Daniel on 8/20/18. Text Only Entry (rkeec) (Entered: 08/20/2018)
09/04/2018	5	SUMMONS Returned Executed by Peatinna Biggs. County of Sedwick, The served on 8/27/2018, answer due 9/17/2018. (Nares, Kaitlin) (Entered: 09/04/2018)
09/05/2018	6	ORDER SETTING SCHEDULING CONFERENCE Scheduling Conference set for 10/2/2018 10:00 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. By Magistrate Judge S. Kato Crews on 9/5/18. (amont,) (Entered: 09/05/2018)
09/12/2018	7	NOTICE of Entry of Appearance by Thomas Sullivan Rice on behalf of County of Sedwick, TheAttorney Thomas Sullivan Rice added to party County of Sedwick, The(pty:dft) (Rice, Thomas) (Entered: 09/12/2018)
09/12/2018	8	MOTION for Extension of Time to File Answer or Otherwise Respond re 1 Complaint, by Defendant County of Sedwick, The. (Rice, Thomas) (Entered: 09/12/2018)
09/12/2018	9	MEMORANDUM regarding 8 MOTION for Extension of Time to File Answer or Otherwise Respond re 1 Complaint, filed by County of Sedwick, The. Motion referred to Magistrate Judge S. Kato Crews by Judge Wiley Y. Daniel on 9/12/18. Text Only Entry (rkeec) (Entered: 09/12/2018)
09/12/2018	10	Unopposed MOTION to Continue <i>Scheduling Conference 60 Days</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 09/12/2018)
09/12/2018	11	MEMORANDUM regarding 10 Unopposed MOTION to Continue <i>Scheduling Conference 60 Days</i> filed by Peatinna Biggs. Motion referred to Magistrate Judge S. Kato Crews by Judge Wiley Y. Daniel on 9/12/18. Text Only Entry (rkeec) (Entered: 09/12/2018)
09/14/2018	12	ORDER granting 8 Motion for Extension of Time. Defendant Board of County Commissioners of the County of Sedgwick shall answer or otherwise respond on or before 10/9/2018. It is FURTHER ORDERED that the Scheduling Conference is RESET for 11/26/2018 at 09:00 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. By Magistrate Judge S. Kato Crews on 9/14/2018. Text Only Entry (skclcl1) (Entered: 09/14/2018)
09/25/2018	13	NOTICE of Entry of Appearance by Jonathan Neal Eddy on behalf of County of Sedwick, TheAttorney Jonathan Neal Eddy added to party County of Sedwick, The(pty:dft) (Eddy, Jonathan) (Entered: 09/25/2018)
10/04/2018	14	MOTION to Dismiss by Defendant County of Sedwick, The. (Eddy, Jonathan) (Entered: 10/04/2018)
10/20/2018	15	NOTICE of Filing Amended Pleading <i>PURSUANT TO FEDERAL RULES OF CIVIL PRODUCE 15(a)(1)(B) and D.C.COLO.LCivR 15.1(a)</i> by Plaintiff Peatinna Biggs (Attachments: # 1 Exhibit A, Underlines and Strikes)(Nares, Kaitlin) (Entered: 10/20/2018)

10/20/2018	16	AMENDED COMPLAINT <i>AS A MATTER OF COURSE PURSUANT TO FEDERAL RULES OF CIVIL PRODUCE 15(a)(1)(B) and D.C.COLO.LCivR 15.1(a)</i> against County of Sedwick, The, Thomas Hanna, Thomas (I) Hanna, Sedgwick County Sheriff's Department, Larry Neugebauer, filed by Peatinna Biggs. (Attachments: # 1 Summons Sedgwick County Sheriff's Department, # 2 Summons Larry Neugebauer)(Nares, Kaitlin) (Entered: 10/20/2018)
10/22/2018	17	MINUTE ORDER Plaintiff filed a First Amended Complaint on October 20, 2018. (ECF No. 16). Therefore, Defendant County of Sedgwick's (who Defendant claims should have been designated as the Board of County Commissioners of the County of Sedgwick) Motion to Dismiss (ECF No. 14), filed on October 4, 2018, is DENIED AS MOOT. See Gotfredson v. Larsen LP, 432 F. Supp. 2d 1163, 1172 (D. Colo. 2006) (observing that an amended pleading supersedes the pleading it modifies, thereby moots any motions to dismiss directed at the inoperative pleading); Strich v. U.S., 2010 WL 148269, at *1 (D. Colo. Jan. 11, 2010) ("The filing of an amended complaint moots a motion to dismiss directed at the complaint that is supplanted and superseded."), by Judge Wiley Y. Daniel on 10/22/2018. (evana,) (Entered: 10/22/2018)
10/30/2018	18	SUMMONS Returned Executed by Peatinna Biggs. Thomas Hanna served on 10/24/2018, answer due 11/14/2018. (Nares, Kaitlin) (Entered: 10/30/2018)
11/01/2018	19	Unopposed MOTION to Continue <i>and Reset Preliminary Hearing</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 11/01/2018)
11/01/2018	20	MEMORANDUM regarding 19 Unopposed MOTION to Continue <i>and Reset Preliminary Hearing</i> filed by Peatinna Biggs. Motion referred to Magistrate Judge S. Kato Crews by Judge Wiley Y. Daniel on 11/1/18. Text Only Entry (rkeec) (Entered: 11/01/2018)
11/02/2018	21	ORDER granting 19 Motion to Continue. The Scheduling Conference is RESET for 12/17/2018 at 10:00 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. By Magistrate Judge S. Kato Crews on 11/2/2018. Text Only Entry (skclcl1) (Entered: 11/02/2018)
11/05/2018	22	MOTION to Dismiss <i>Plaintiff's First Amended Complaint</i> by Defendant County of Sedwick, The. (Attachments: # 1 Exhibit A)(Eddy, Jonathan) (Entered: 11/05/2018)
11/08/2018	23	WAIVER OF SERVICE Returned Executed by Peatinna Biggs. Sedgwick County Sheriff's Department waiver sent on 11/7/2018, answer due 1/7/2019. (Nares, Kaitlin) (Entered: 11/08/2018)
11/08/2018	24	WAIVER OF SERVICE Returned Executed by Peatinna Biggs. Larry Neugebauer waiver sent on 11/7/2018, answer due 1/7/2019. (Nares, Kaitlin) (Entered: 11/08/2018)
11/11/2018	25	SUMMONS Returned Executed by Peatinna Biggs. Thomas Hanna served on 11/3/2018, answer due 11/26/2018. (Nares, Kaitlin) (Entered: 11/11/2018)
11/19/2018	26	Unopposed MOTION for Extension of Time to File Response/Reply as to 22 MOTION to Dismiss <i>Plaintiff's First Amended Complaint Request for One Week Extension, On or Before December 3, 2018, To File Opposition</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 11/19/2018)
11/19/2018	27	MINUTE ORDER Plaintiff's Unopposed Motion for Extension to File an Opposition to Defendants' Motion to Dismiss (ECF No. 26), filed on November 19, 2018, is GRANTED. Plaintiff shall file her response to Defendants' Motion to Dismiss (ECF No. 22) no later than Monday, December 3, 2018, by Judge Wiley Y. Daniel on 11/19/2018. (evana,) (Entered: 11/19/2018)
11/23/2018	28	STIPULATION re 16 Amended Complaint, <i>Joint Stipulation to Amend Caption</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 11/23/2018)
11/23/2018	29	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 28 Stipulation filed by attorneyKaitlin F. Nares. Attorney has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures

		(Civil cases). DO NOT REFILE THE DOCUMENT. In the future, the filer must affix an electronic s/signature and s/ followed by a typed, not an inked, signature to all future documents. (Text Only Entry) (evana,) (Entered: 11/23/2018)
11/26/2018	30	NOTICE OF DEFENDANT THOMAS HANNAS CERTIFIED ANSWER by Plaintiff Peatinna Biggs (Attachments: # 1 Exhibit A, Defendant Thomas Hanna's Certified Answer)(Nares, Kaitlin) (Entered: 11/26/2018)
11/26/2018	31	Proposed Scheduling Order <i>Jointly Filed on Behalf of Plaintiff and the Board of County Commissioners for the County of Sedgwick</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 11/26/2018)
11/27/2018	32	DOCKETING ERROR The Defendant's ANSWER to 16 Amended Complaint by Thomas Hanna, and Thomas (I) Hanna.(agarc,) (Modified on 11/28/2018 This was a Docketing error) (evana,). (Entered: 11/27/2018)
12/03/2018	33	BRIEF in Opposition to 22 MOTION to Dismiss <i>Plaintiff's First Amended Complaint</i> filed by Plaintiff Peatinna Biggs. (Attachments: # 1 Exhibit A, Redacted Education Records, # 2 Exhibit B, Letters from St. John's School District, # 3 Exhibit C, Redacted Developmental Disability Determination, # 4 Exhibit D, Redacted IQ and Adaptive Testing)(Nares, Kaitlin) (Entered: 12/03/2018)
12/03/2018	34	MINUTE ORDER Plaintiff's Response to Defendants' Motion to Dismiss (ECF No. 33), filed on December 3, 2018, is STRICKEN because it exceeds the page limitations set forth in my Practice Standards. See WYD Civ. Practice Standard § II(E)(1)-(2), available at http://www.cod.uscourts.gov/Portals/0/Documents/Judges/WYD/WYD_Practice_Standards.pdf . According to these standards, except under "extraordinary circumstances" and upon request, the text of a response, which excludes the caption page, tables of contents and authorities, attorneys' signature page, and certificate of service, may not exceed fifteen pages. Id. Plaintiff shall file a response to Defendants' Motion to Dismiss (ECF No. 22) that complies with my Practice Standards by Wednesday, December 12, 2018, by Judge Wiley Y. Daniel on 12/3/2018. (evana,) (Entered: 12/03/2018)
12/05/2018	35	BRIEF in Opposition to 22 MOTION to Dismiss <i>Plaintiff's First Amended Complaint</i> filed by Plaintiff Peatinna Biggs. (Attachments: # 1 Exhibit A, CCB Evaluation Letter, # 2 Exhibit B, CCB Determination Letter)(Nares, Kaitlin) (Entered: 12/05/2018)
12/12/2018	36	MINUTE ORDER: The Scheduling Conference set 12/17/2018 at 10:00 AM in Courtroom C204 before Magistrate Judge S. Kato Crews is converted to a Telephonic Status Conference. The parties shall initiate a conference call amongst themselves prior to calling the Court (303.335.2124) at the scheduled time. By Magistrate Judge S. Kato Crews on 12/12/2018. Text Only Entry (skclc1) (Entered: 12/12/2018)
12/17/2018	37	COURTROOM MINUTES Telephone Status Conference held on 12/17/2018. Telephone Status Conference set for 1/28/2019 10:30 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. Parties participating in the hearing shall initiate a conference call amongst themselves before calling the Court (303.335.2124) at the scheduled time. Defendant Thomas Hanna is ORDERED to participate in this hearing. Ms. Nares will facilitate in Mr. Hanna receiving this order. FTR: Courtroom C-204. (amont,) (Entered: 12/17/2018)
12/19/2018	38	REPLY to Response to 14 MOTION to Dismiss filed by Defendant County of Sedwick, The. (Eddy, Jonathan) (Entered: 12/19/2018)
12/21/2018	39	NOTICE re 37 Status Conference,, Set/Reset Hearings, <i>SERVICE OF COURT ORDER [DKT # 37] ON THOMAS HANNA</i> by Plaintiff Peatinna Biggs (Attachments: # 1 Exhibit A, Affidavit of Service of Court Order (Dkt. No. 37))(Nares, Kaitlin) (Entered: 12/21/2018)
01/04/2019	40	MOTION to Dismiss by Defendants Larry Neugebauer, Larry (I) Neugebauer, Sedgwick County Sheriff's Department. (Eddy, Jonathan) (Entered: 01/04/2019)

01/07/2019	41	ORDER Pursuant to the parties' Joint Stipulation to Amend the Caption (ECF No. 28), it is ORDERED that the caption in this action is hereby amended to reflect that the Board of County Commissioners of the County of Sedgwick shall be substituted for County of Sedgwick in the caption and Sheriff Carlton Britton shall be substituted for Sedgwick County Sheriff's Department in the caption, by Judge Wiley Y. Daniel on 1/7/2019. (evana,) (Entered: 01/07/2019)
01/23/2019	42	BRIEF in Opposition to 40 MOTION to Dismiss filed by Plaintiff Peatinna Biggs. (Attachments: # 1 Exhibit A, Education Records, # 2 Exhibit B, CCB Review Letter, # 3 Exhibit C, CCB Determination Letter)(Nares, Kaitlin) (Entered: 01/23/2019)
01/28/2019	43	COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Status Conference held on 1/28/2019. Mr. Hanna's answer shall be filed no later than 2/6/2019. Telephone Status Conference set for 2/26/2019 11:30 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. Parties participating in the hearing shall initiate a conference call amongst themselves before calling the Court (303.335.2124) at the scheduled time. FTR: Courtroom C-204. (amont,) (Entered: 01/28/2019)
02/06/2019	44	REPLY to Response to 40 MOTION to Dismiss filed by Defendants Carlton Britton, Larry Neugebauer, Larry (I) Neugebauer. (Eddy, Jonathan) (Entered: 02/06/2019)
02/06/2019	45	ANSWER to 16 Amended Complaint, by Thomas Hanna, Thomas (I) Hanna.(evana,) (Entered: 02/06/2019)
02/06/2019	46	MOTION to Appoint Pro Bono Counsel by Defendants Thomas Hanna, Thomas (I) Hanna. (evana,) (Entered: 02/06/2019)
02/07/2019	47	MEMORANDUM regarding 46 MOTION to Appoint Pro Bono Counsel filed by Thomas (I) Hanna, Thomas Hanna. Motion referred to Magistrate Judge S. Kato Crews by Judge Wiley Y. Daniel on 2/7/19. Text Only Entry (rkeec) (Entered: 02/07/2019)
02/07/2019	48	Appointment Order by Magistrate Judge S. Kato Crews on 2/7/2019. (jgonz,) (Entered: 02/07/2019)
02/24/2019	49	NOTICE of Entry of Appearance by Jane Holse Fisher-Byrialsen on behalf of Peatinna BiggsAttorney Jane Holse Fisher-Byrialsen added to party Peatinna Biggs(pty:pla) (Fisher-Byrialsen, Jane) (Entered: 02/24/2019)
02/26/2019	50	COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Status Conference held on 2/26/2019. ORDERED: With agreement of the parties, the Court will interlineate the proposed scheduling order 31 submitted earlier in the case. FTR: Courtroom C-204. (amont,) (Entered: 02/26/2019)
02/28/2019	51	SCHEDULING ORDER: Discovery due by 10/28/2019. Dispositive Motions due by 12/6/2019. Joint Status Report due by 5/24/2019. So ORDERED by Magistrate Judge S. Kato Crews on 2/28/19. (amont,) (Entered: 02/28/2019)
03/14/2019	52	Stipulated MOTION to Withdraw as Attorney <i>Kaitlin F. Nares, Esq. as counsel for Plaintiff Peatinna Biggs</i> by Plaintiff Peatinna Biggs. (Nares, Kaitlin) (Entered: 03/14/2019)
03/14/2019	53	MEMORANDUM regarding 52 Stipulated MOTION to Withdraw as Attorney <i>Kaitlin F. Nares, Esq. as counsel for Plaintiff Peatinna Biggs</i> filed by Peatinna Biggs. Motion referred to Magistrate Judge S. Kato Crews by Judge Wiley Y. Daniel on 3/14/19. Text Only Entry (rkeec) (Entered: 03/14/2019)
03/14/2019	54	ORDER granting 52 Motion to Withdraw as Attorney. Attorney Kaitlin Fleur Nares is terminated as counsel for Plaintiff. The Clerk of Court shall remove Ms. Nares from the electronic notification system for this case. By Magistrate Judge S. Kato Crews on 3/14/2019. Text Only Entry (skclcl) (Entered: 03/14/2019)

05/09/2019	55	MOTION to Stay <i>Discovery</i> by Defendants Carlton Britton, County of Sedgwick, The, Larry Neugebauer, Larry (I) Neugebauer. (Eddy, Jonathan) (Entered: 05/09/2019)
05/10/2019	56	MEMORANDUM regarding 55 MOTION to Stay Discovery filed by Carlton Britton, Larry (I) Neugebauer, County of Sedgwick, The, Larry Neugebauer. Motions referred to Magistrate Judge S. Kato Crews, by Judge Wiley Y. Daniel on 5/10/2019. Text Only Entry (evana,) (Entered: 05/10/2019)
05/10/2019	57	ORDER re 55 Motion to Stay. In light of the fact that Plaintiff has taken no position on the Motion, and because Defendant Neugebauer has asserted the defense of qualified immunity, which weighs in favor of a stay, the Court will GRANT the motion. Should the pending Motion to Dismiss be denied in any part, the parties shall contact Judge Crews' chambers within 72 hours of the Order to set a further scheduling/status conference. By Magistrate Judge S. Kato Crews on 5/10/2019. Text Only Entry(skclcl1) (Entered: 05/10/2019)
05/20/2019	58	This action is reassigned to Judge Daniel D. Domenico upon his appointment and the passing of Judge Wiley Y. Daniel. Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Judge Domenico in Courtroom A-702. His chambers are located in A-738 of the Alfred A. Arraj Courthouse. His telephone number is 303-335-2468. All future pleadings should be designated as 18-cv-02076-DDD-SKC. Text only entry. (tsher,) (Entered: 05/21/2019)
05/24/2019	59	Joint STATUS REPORT by Defendants Carlton Britton, County of Sedgwick, The, Larry Neugebauer, Larry (I) Neugebauer. (Eddy, Jonathan) (Entered: 05/24/2019)
07/18/2019	60	Amended MOTION for Appointment of Counsel by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 07/18/2019)
07/18/2019	61	ORDER REFERRING MOTION: 60 MOTION to Appoint Pro Bono Counsel filed by Thomas (I) Hanna, Thomas Hanna. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 07/18/2019. Text Only Entry (dddcl2) (Entered: 07/18/2019)
07/31/2019	62	ORDER finding as moot 60 Motion to Appoint Pro Bono Counsel. This Court previously granted Defendant Thomas Hanna's request for the appointment of pro bono counsel [ECF. #48] and the Court has confirmed that Mr. Hanna has been placed in the pool of candidates awaiting possible appointment. Thus, Mr. Hanna's renewed request is unnecessary and is denied as moot. Mr. Hanna is reminded that there is <u>no guarantee that Panel members will undertake representation in every case selected and Mr. Hanna remains responsible for all scheduled matters, including hearings, depositions, motions and trial.</u> By Magistrate Judge S. Kato Crews on 7/31/2019. Text Only Entry(skclcl1) (Entered: 07/31/2019)
10/17/2019	63	ORDER. The Court concludes that Ms. Biggs is an incompetent person within the meaning of Rule 17(c). Accordingly, it is ORDERED that within 60 days of this order, Plaintiff's counsel shall either: (1) show that Ms. Biggs is represented by a next friend, general guardian, committee, conservator or other like fiduciary under Fed. R. Civ. P. 17(c), and move to further amend Ms. Biggs Amended Complaint as necessary to reflect such representation; or (2) if she is not so repre-sented, move for the appointment of a guardian ad litem pursuant to Fed. R. Civ. P. 17(c)(2). By Judge Daniel D. Domenico on 10/17/2019. (athom,) (Entered: 10/17/2019)
12/16/2019	64	Unopposed MOTION for Appointment of <i>Representative or Guardian Ad Litem</i> by Plaintiff Peatinna Biggs. (Attachments: # 1 Exhibit Exhibit 1: CV of Hollis Whitson)(Fisher-Byrialsen, Jane) Modified on 12/17/2019 to correct event (athom,). (Entered: 12/16/2019)
12/17/2019	65	ORDER Granting 64 Motion for the Appointment of a Guardian ad Litem. Hollis Whitson is hereby appointed as guardian ad litem for Plaintiff Peatinna Biggs. Within three days of this order, the parties and Ms. Whitson shall contact chambers via email with three alternative dates convenient for the parties and Ms. Whitson to hold a status conference before this Court. By Judge Daniel D. Domenico on 12/17/2019. (athom,) (Entered: 12/17/2019)

12/26/2019	66	ORDER Status Conference set for 1/15/2020 10:30 AM in Courtroom A 702 before Judge Daniel D. Domenico. By Judge Daniel D. Domenico on 12/26/2019. Text Only Entry (dddlc2) (Entered: 12/26/2019)
01/10/2020	67	MOTION to Continue by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 01/13/2020)
01/10/2020	68	MOTION to Dismiss by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 01/13/2020)
01/10/2020	69	MOTION to Dismiss by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 01/13/2020)
01/10/2020	70	MOTION for Inquiry by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 01/13/2020)
01/10/2020	71	MOTION for Appointment of Counsel (Amended and Request of Explanation) by Defendants Thomas Hanna, Thomas (I) Hanna. (Attachments: # 1 Envelope) (athom,) (Entered: 01/13/2020)
01/13/2020	72	ORDER GRANTING 67 Motion to Continue. The Status Conference set for 1/15/2020 is VACATED. The parties shall confer and email the Court at Domenico_Chambers@cod.uscourts.gov on or before 1/21/2020 with three alternative dates on which <i>all</i> parties are available for a status conference. SO ORDERED by Judge Daniel D. Domenico on 1/13/2020. Text Only Entry (dddlc1,) (Entered: 01/13/2020)
01/13/2020	73	ORDER REFERRING MOTIONS: 68 Motion to Dismiss filed by Thomas Hanna, 69 Motion to Dismiss filed by Thomas Hanna, 71 Motion to Appoint Pro Bono Counsel filed by Thomas Hanna, 70 Motion for Inquiry filed by Thomas Hanna. Motions referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 1/13/2020. Text Only Entry (dddlc1,) (Entered: 01/13/2020)
01/22/2020	74	Joint STATUS REPORT <i>and Request to for Order Directing Defendant Hanna to Appear</i> by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 01/22/2020)
01/23/2020	75	Joint STATUS REPORT <i>Regarding Setting Status Conference</i> by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 01/23/2020)
01/23/2020	76	ORDER. Status Conference set for 2/19/2020 at 11:30 AM in Courtroom A 702 before Judge Daniel D. Domenico. SO ORDERED by Judge Daniel D. Domenico on 1/23/2020. Text Only Entry (dddlc2,) (Entered: 01/23/2020)
01/29/2020	77	MOTION for Extension of Time to File Response/Reply as to 68 MOTION to Dismiss, 69 MOTION to Dismiss by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 01/29/2020)
01/29/2020	78	ORDER granting 77 Motion for Extension of Time to File Response to Motions to Dismiss (Docs. 68 and 69). Plaintiff Biggs will have until February 14, 2020 to file a response. SO ORDERED by Judge Daniel D. Domenico on 1/29/20. Text Only Entry(dddlc2,) (Entered: 01/29/2020)
02/03/2020	79	Notice of Pro Bono Appointment: Attorney Matthew William Buck of the law firm Red Law LLC has been selected as counsel to represent the defendant, Thomas Hanna, in accordance with the Court's Order of February 7, 2019 and D.C.COLO.LAttyR 15(f) of the U.S. District Court's Local Rules of Practice. Counsel has thirty days to either enter an appearance in the case or to file a Notice Declining Appointment. This Notice of Appointment will be sent to the pro se litigant and selected counsel by the undersigned designated clerk. (kmont) (Entered: 02/03/2020)
02/12/2020	80	Letter requesting to rescind re 68 MOTION to Dismiss, 69 MOTION to Dismiss by Defendants Thomas Hanna, Thomas (I) Hanna. (athom,) (Entered: 02/12/2020)

02/13/2020	81	Second MOTION for Extension of Time to File Response/Reply as to 68 MOTION to Dismiss, 69 MOTION to Dismiss, 80 MOTION to Withdraw Document re 68 MOTION to Dismiss, 69 MOTION to Dismiss by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 02/13/2020)
02/13/2020	82	ORDER REFERRING MOTION(S): 81 Second MOTION for Extension of Time to File Response/Reply as to 68 MOTION to Dismiss, 69 MOTION to Dismiss, 80 MOTION to Withdraw Document re 68 MOTION to Dismiss, 69 MOTION to Dismiss filed by Peatinna Biggs, 80 MOTION to Withdraw Document re 68 MOTION to Dismiss, 69 MOTION to Dismiss filed by Thomas Hanna. Motions referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 2/13/20. Text Only Entry (dddlc2,) (Entered: 02/13/2020)
02/14/2020	83	ORDER: Defendant Hanna's 80 Motion to Withdraw his pending Motions to Dismiss is GRANTED. Therefore, 68 Motion to Dismiss; and 69 Motion to Dismiss and deemed WITHDRAWN. Further, the Court finds as moot Plaintiff's 81 Motion for Extension of Time to File Response to these motions. By Magistrate Judge S. Kato Crews on 2/14/2020. Text Only Entry(skclcl1) (Entered: 02/14/2020)
02/14/2020	84	ORDER: In his 70 Motion for Inquiry, Mr. Hanna seeks clarification as to why his name has not been added to the pool of prospective cases for pro bono counsel and in 71 Motion to Appoint Pro Bono Counsel, Mr. Hanna renews his request for appointment of Pro Bono Counsel. In a previous order, dated July 31, 2019, this Court explained that Mr. Hanna had, in fact, been added to the pool of cases eligible for pro bono counsel. However, the Court reminded Mr. Hanna that there was no guarantee an attorney would choose to accept representation. This remains true today. The Court has again confirmed that Mr. Hanna is on the list of potential cases for pro bono representation. Thus, his renewed motion for appointment is unnecessary. <u>But there is no guarantee that Panel members will undertake representation in every case selected and in the event that no attorney chooses to undertake this matter on Mr. Hanna's behalf, Mr. Hanna remains responsible for all scheduled matters, including hearings, depositions, motions and trial.</u> The Court will include copies of the previous two orders addressing Mr. Hanna's motions for counsel with this mailing. By Magistrate Judge S. Kato Crews on 2/14/2020. Text Only Entry(skclcl1) (Entered: 02/14/2020)
02/19/2020	85	MINUTE ENTRY for Status Conference held before Judge Daniel D. Domenico on 2/19/2020. Court Reporter: Tracy Weir. (pglov) (Entered: 02/19/2020)
02/19/2020	86	NOTICE of Entry of Appearance by Matthew William Buck on behalf of Thomas Hanna, Thomas (I) HannaAttorney Matthew William Buck added to party Thomas Hanna(pty:dft), Attorney Matthew William Buck added to party Thomas (I) Hanna(pty:dft) (Buck, Matthew) (Entered: 02/19/2020)
02/26/2020	87	Unopposed MOTION to Substitute Party by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 02/26/2020)
02/27/2020	88	ORDER Granting 87 Unopposed Motion to Substitute Party. The Clerk is hereby ORDERED to substitute Ms. Whitson as Ms. Biggs' representative, terminate Ms. Biggs from the case, and amend the caption of the case accordingly. By Judge Daniel D. Domenico on 02/27/2020. (athom,) (Entered: 02/27/2020)
04/17/2020	89	ORDER. The Motion to Dismiss filed by the Board of County Commissioners of Sedgwick County (Doc. 22) is GRANTED, and the claim against the Board of County Commissioners of Sedgwick County (Eighth Claim) is DISMISSED. The Motion to Dismiss filed by Sheriff Britton and Deputy Larry Neugebauer (Doc. 40) is GRANTED. Ms. Biggs' claim against

		Sheriff Brit-ton (Eighth Claim) is DISMISSED. Her Fifth, Sixth, Ninth, and Tenth Claims against Deputy Larry Neugebauer are DISMISSED. By Judge Daniel D. Domenico on 04/17/2020. (athom,) (Entered: 04/17/2020)
07/30/2020	90	MINUTE ORDER: In light of the 89 Order on Motion to Dismiss, a Scheduling Conference for the remaining parties is set for 9/1/2020 at 09:30 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. The parties shall file their proposed scheduling order on or before August 25, 2020, and shall email an editable copy to Crews_Chambers@cod.uscourts.gov. By Magistrate Judge S. Kato Crews on 7/30/2020. Text Only Entry (skclcl) (Entered: 07/30/2020)
08/25/2020	91	MINUTE ORDER The upcoming hearing in this matter before Magistrate Judge Crews shall be conducted via telephone. The parties shall call the Court provided conference line as a participant at 888.251.2909, Access Code 5662814# at the scheduled time. The Court notes that the parties may hear the conclusion of a prior hearing at the time they call in, and are instructed to simply wait until their case is called. The Court thanks the parties in advance for their patience and flexibility as the Court implements this new technology. Text Only Entry (amont,) (Entered: 08/25/2020)
08/25/2020	92	Proposed Scheduling Order by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 08/25/2020)
08/31/2020	93	MINUTE ORDER: The Court has begun review of the 92 Proposed Scheduling Order filed by Peatinna Biggs, and although this document appears to contain all of the necessary information, it is difficult to say definitively due to the formatting of the proposed order. Consequently, the Scheduling Conference set for tomorrow is VACATED and the parties are ORDERED to utilize the Form for proposed scheduling orders, which can be found on this Court's website. The revised proposed scheduling order shall be due on or before September 4, 2020. IT IS FURTHER ORDERED that the conference is RESET for 9/8/2020 at 10:00 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. By Magistrate Judge S. Kato Crews on 8/31/2020. Text Only Entry (skclcl) (Entered: 08/31/2020)
09/02/2020	94	MINUTE ORDER The upcoming hearing in this matter before Magistrate Judge Crews shall be conducted via telephone. The parties shall call the Court provided conference line as a participant at 888.251.2909, Access Code 5662814# at the scheduled time. The Court notes that the parties may hear the conclusion of a prior hearing at the time they call in, and are instructed to simply wait until their case is called. The Court thanks the parties in advance for their patience and flexibility as the Court implements this new technology. Text Only Entry (amont,) (Entered: 09/02/2020)
09/02/2020	95	Proposed Scheduling Order by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 09/02/2020)
09/04/2020	96	MINUTE ORDER: Due to an unavoidable conflict that has arisen on the Court's calendar, the Scheduling Conference must be RESET for 9/8/2020 at <u>01:30 PM</u> in Courtroom C201 before Magistrate Judge S. Kato Crews. The parties shall use the same call-in instructions as previously given. By Magistrate Judge S. Kato Crews on 9/4/2020. Text Only Entry (skclcl) (Entered: 09/04/2020)
09/08/2020	97	COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Scheduling Conference held on 9/8/2020. Discovery due by 7/12/2021. Dispositive Motions due by 8/11/2021. Joint Status Report due by 11/20/2020. FTR: Courtroom C-201. (amont,) (Entered: 09/08/2020)
09/08/2020	98	SCHEDULING ORDER: by Magistrate Judge S. Kato Crews on 9/8/2020. (amont,) (Entered: 09/08/2020)
11/20/2020	99	Joint STATUS REPORT by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 11/20/2020)
03/29/2021	100	ADVISORY NOTICE TO ATTORNEY AND COURT: Under D.C.COLO.LAttyR 3(a), Matthew William Buck was administratively removed from the court's attorney roll and barred

		from filing electronically under CM/ECF for failing to pay the 2020 Biennial Fee. Counsel must complete a Bar/ECF application through counsel's existing Attorney Services Portal account and pay the full application fee to be restored to the attorney roll and CM/ECF. Upon reinstatement, counsel must file a Notice of Entry of Appearance in this case. (Text Only Entry) (mfred) (Entered: 03/29/2021)
03/30/2021	101	NOTICE of Entry of Appearance by Matthew William Buck on behalf of Thomas Hanna, Thomas (I) Hanna (Buck, Matthew) (Entered: 03/30/2021)
06/21/2021	102	MOTION to Withdraw as Attorney by Defendant Board of County Commissioners of the County of Sedgwick, The. (Rice, Thomas) (Entered: 06/21/2021)
06/21/2021	103	ORDER granting 102 Motion to Withdraw as Attorney. Attorney Thomas S. Rice is hereby terminated. SO ORDERED by Judge Daniel D. Domenico on 6/21/2021. Text Only Entry (ddd1c2,) (Entered: 06/21/2021)
11/09/2021	104	Unopposed MOTION for Order to <i>set a Scheduling Conference</i> by Plaintiff Peatinna Biggs. (Fisher-Byrialsen, Jane) (Entered: 11/09/2021)
11/09/2021	105	ORDER denying 104 Motion for Order to set a scheduling conference. The dispositive motions deadline has passed, and there are no pending motions. To facilitate the Court's just, speedy, and inexpensive determination of this action, on or before 12/2/2021 the parties must file a Joint Status Report not to exceed 1,400 words, identifying the following: (1) the nature of the dispute between the parties; (2) the prospects for settlement; (3) three mutually agreeable alternative dates for trial to commence in April or May 2022, and the anticipated length of trial; and (4) any other issues the parties wish to bring to the Court's attention. SO ORDERED by Judge Daniel D. Domenico on 11/9/2021. Text Only Entry(ddd1c2,) (Entered: 11/09/2021)
12/02/2021	106	Joint STATUS REPORT by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 12/02/2021)
03/31/2022	107	TRIAL PREPARATION ORDER. Combined Final Pretrial Conference/Trial Preparation Conference set for 5/3/2022 at 10:30 AM in Courtroom A1002 before Judge Daniel D. Domenico. Three-day Jury Trial set for 5/10/2022 at 09:00 AM in Courtroom A1002 before Judge Daniel D. Domenico. By Judge Daniel D. Domenico on 03/31/2022. (athom,) (Entered: 03/31/2022)
04/14/2022	108	Unopposed MOTION to Continue <i>Trial Date</i> by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 04/14/2022)
04/19/2022	109	AMENDED TRIAL PREPARATION ORDER. Plaintiff's Unopposed Motion to Continue Trial (Doc. 108) is GRANTED. The Final Pretrial Conference and Trial Preparation Conference set for 5/3/2022 is VACATED. Final Pretrial Conference is RESET for 8/16/2022 at 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. Trial Preparation Conference is RESET for 9/21/2022 at 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. The three-day Jury Trial set for 5/10/2022 is VACATED and RESET to 9/26/2022 at 09:00 AM in Courtroom A1002 before Judge Daniel D. Domenico. By Judge Daniel D. Domenico on 04/19/2022. (athom,) (Entered: 04/19/2022)
08/12/2022	110	ORDER. Neither party has filed the required pretrial documents within the deadlines set by the Amended Trial Preparation Order Doc. 109 . The Final Pretrial Conference set for 8/16/2022 is VACATED and RESET for 9/7/22 at 1:30 PM. The parties are ordered to file a joint status report on or before 8/16/2022 indicating whether they expect the trial to go forward as scheduled as well as any other issues the parties wish to raise. The parties are further ordered to file joint proposed Jury instructions on or before 8/19/2022 in the manner described in the Amended Trial Preparation Order Doc. 109 . The parties must file a Proposed final pretrial order on or before 8/26/2022.

		The parties must file a proposed witness list, proposed joint exhibit list, and proposed voir dire questions on or before 8/31/22. An estimate of the time anticipated for cross-examination of each sides opposing witnesses is due on or before 9/2/2022. If filed, motions in limine are due on or before 8/24/2022 with responses due 8/31/2022. Trial briefs are encouraged, but not required. If filed, they are due on or before 8/31/22. SO ORDERED by Judge Daniel D. Domenico on 8/12/2022. Text Only Entry (dddlc2,) (Entered: 08/12/2022)
08/15/2022	111	NOTICE of Entry of Appearance by David Nathan Fisher on behalf of Peatinna Biggs Attorney David Nathan Fisher added to party Peatinna Biggs(pty:pla) (Fisher, David) (Entered: 08/15/2022)
08/16/2022	112	STATUS REPORT by Defendant Thomas Hanna. (Buck, Matthew) (Entered: 08/16/2022)
08/17/2022	113	ORDER. The parties have until and including 8/26/2022 to submit their joint proposed jury instructions. SO ORDERED by Judge Daniel D. Domenico on 8/17/2022. Text Only Entry (dddlc2,) (Entered: 08/17/2022)
08/25/2022	114	Proposed Jury Instructions by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 08/25/2022)
08/26/2022	115	Proposed Pretrial Order by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 08/26/2022)
08/30/2022	116	Proposed Voir Dire by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 08/30/2022)
08/30/2022	117	Proposed Voir Dire by Defendant Thomas Hanna. (Buck, Matthew) (Entered: 08/30/2022)
08/31/2022	118	Exhibit List <i>Joint Proposed Exhibit List</i> by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 08/31/2022)
08/31/2022	119	Witness List by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 08/31/2022)
08/31/2022	120	Witness List by Defendant Thomas Hanna. (Buck, Matthew) (Entered: 08/31/2022)
09/06/2022	121	ORDER. The parties failed to file estimates of the time anticipated for cross-examination of the opposing side's witnesses by 9/2/2022 as previously ordered (Doc. 109 at 9; Doc. 110). The parties must file their estimates of the time required for cross-examination by 9/7/2022 at 10:30 AM . SO ORDERED by Judge Daniel D. Domenico on 09/06/2022. Text Only Entry (dddlc5,) (Entered: 09/06/2022)
09/06/2022	122	STATEMENT of <i>Estimated Cross Examination Time</i> by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 09/06/2022)
09/06/2022	123	Witness List <i>CROSS EXAMINATION LIST</i> by Defendant Thomas Hanna. (Buck, Matthew) (Entered: 09/06/2022)
09/07/2022	124	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Final Pretrial Conference held on 9/7/2022. Oral motion to vacate jury trial is granted. 3-day Jury Trial set to commence on 10/3/2022, at 08:30 AM, in Courtroom A1002 before Judge Daniel D. Domenico. Counsel shall submit a proposed final pretrial order in Word format to chambers. Court Reporter: Julie Thomas. (rkeec) (Entered: 09/07/2022)
09/13/2022	125	Proposed Verdict Form by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 09/13/2022)
09/14/2022	126	MINUTE ORDER. My Chambers received a telephone inquiry regarding the possible attendance of service animals or support animals at trial. Any notice pursuant to Local Civil Rule 83.3 regarding a service-animal accommodation under the Americans with Disabilities Act must be filed by 9/19/2022. If a party, witness, or attorney wishes to bring a support animal into

		the courtroom that is not an accommodation under the Americans with Disabilities Act, a motion must be filed by 9/19/2022 after conferral pursuant to Local Civil Rule 7.1(a). SO ORDERED by Judge Daniel D. Domenico on 9/14/2022. Text Only Entry (dddlc1,) (Entered: 09/14/2022)
09/20/2022	127	FINAL PRETRIAL ORDER entered by Judge Daniel D. Domenico on 9/20/2022. (rkeec) (Entered: 09/20/2022)
09/21/2022	128	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Trial Preparation Conference held on 9/21/2022. Court Reporter: Julie Thomas. (rkeec) (Entered: 09/22/2022)
09/26/2022	129	MOTION in Limine by Defendant Thomas Hanna. (Buck, Matthew) (Entered: 09/26/2022)
09/28/2022	130	First MOTION for Trial <i>Joint Motion for Extra Time for Trial Procedures</i> by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 09/28/2022)
09/29/2022	131	ORDER granting 130 Joint Motion for Extra Time for Trial Procedures. Based on the parties' representations about the length of trial, the motion is granted. Openings are to be given prior to Plaintiff's case. Plaintiff may reserve a portion of closing time for rebuttal. SO ORDERED by Judge Daniel D. Domenico on 09/29/2022. Text Only Entry(dddlc5,) (Entered: 09/29/2022)
09/29/2022	132	RESPONSE to 129 MOTION in Limine <i>Docket 129</i> filed by Plaintiff Hollis Ann Whitson. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D)(Fisher-Byrialsen, Jane) Modified on 10/2/2022 to note that this document has been re-filed as doc 133 (athom,). (Entered: 09/29/2022)
09/29/2022	133	RESPONSE to 129 MOTION in Limine filed by Plaintiff Peatinna Biggs. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit)(Fisher, David) (Entered: 09/29/2022)
10/02/2022	134	Exhibit List <i>Updated</i> by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 10/02/2022)
10/02/2022	135	Witness List <i>Updated</i> by Plaintiff Hollis Ann Whitson. (Fisher-Byrialsen, Jane) (Entered: 10/02/2022)
10/03/2022	136	ORDER Granting 129 Motion in <i>Limine</i> . By Judge Daniel D. Domenico on 10/03/2022. (athom,) (Entered: 10/03/2022)
10/03/2022	137	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 1) held on 10/3/2022. 129 Defendants Motion in Limine as Contained in Joint Status Report is GRANTED. Court Reporter: Kevin Carlin. (rkeec) (Entered: 10/04/2022)
10/03/2022	138	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 10/04/2022)
10/03/2022	139	Jury Strike Sheet with juror names redacted. (rkeec) (Entered: 10/04/2022)
10/04/2022	140	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 2) completed on 10/4/2022. JURY VERDICT. Defendants oral motion to strike Larry Neugebauers testimony is DENIED. Court Reporter: Kevin Carlin. (rkeec) (Entered: 10/05/2022)
10/04/2022	141	Witness List by Plaintiff Hollis Ann Whitson as completed by courtroom deputy with dates and times testified. (rkeec) (Entered: 10/05/2022)
10/04/2022	142	Witness List by Defendants Thomas Hanna, Thomas (I) Hanna as completed by courtroom deputy with dates and times testified. (rkeec) (Entered: 10/05/2022)
10/04/2022	143	Exhibit List as completed by courtroom deputy indicating exhibits admitted. (rkeec) (Entered: 10/05/2022)
10/04/2022	144	Final Jury Instructions as read by the Court on 10/4/2022. (rkeec) (Entered: 10/05/2022)

10/04/2022	145	Jury Note (Verdict) - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 10/05/2022)
10/04/2022	146	Jury Note (Verdict) with juror signature redacted. (rkeec) (Entered: 10/05/2022)
10/04/2022	147	Verdict Form - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 10/05/2022)
10/04/2022	148	VERDICT FORM with juror signature redacted. (rkeec) (Entered: 10/05/2022)
10/04/2022	149	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS entered by Judge Daniel D. Domenico on 10/4/2022. (rkeec) (Entered: 10/05/2022)
10/04/2022	150	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Amended re 140 Jury Trial (Day 2) - Completed. Amended to reflect that exhibits and depositions were returned to counsel at the conclusion of the trial. Court Reporter: Kevin Carlin. (rkeec) (Entered: 10/05/2022)
10/07/2022	151	First MOTION for Trial <i>Requesting time before entry of final judgment</i> by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 10/07/2022)
10/13/2022	152	ORDER denying 151 Motion Requesting Time Before Entry of Final Judgment. Plaintiff seeks to delay entry of final judgment in order to file a motion for reconsideration of the Court's two-year-old dismissal of Sedgwick County as a defendant 89 . This is not an appropriate reason for the Court to delay entry of final judgment. If Plaintiff wishes, she may file an appropriate post-judgment motion under Fed. R. Civ. P. 59(e) or 60(b). SO ORDERED by Judge Daniel D. Domenico on 10/13/2022. Text Only Entry(ddd1c5,) (Entered: 10/13/2022)
10/13/2022	153	FINAL JUDGMENT by Clerk on 10/13/2022 in favor of Hollis Ann Whitson against Thomas Hanna, Thomas (I) Hanna. APPROVED AS TO FORM by Judge Daniel D. Domenico on 10/13/2022. (rkeec) (Entered: 10/13/2022)
10/16/2022	154	First MOTION to Clarify re 153 Clerk's Judgment <i>in favor of Plaintiff and against Defendant</i> by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 10/16/2022)
10/19/2022	155	First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b)</i> by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 10/19/2022)
10/20/2022	156	MOTION to Amend/Correct/Modify 153 Clerk's Judgment by Defendants Board of County Commissioners of the County of Sedgwick, The, Sedgwick County Sheriff's Department. (Eddy, Jonathan) (Entered: 10/20/2022)
11/07/2022	157	RESPONSE to 154 First MOTION to Clarify re 153 Clerk's Judgment <i>in favor of Plaintiff and against Defendant</i> filed by Defendants Board of County Commissioners of the County of Sedgwick, The, Sedgwick County Sheriff's Department. (Eddy, Jonathan) (Entered: 11/07/2022)
11/08/2022	158	Unopposed MOTION for Extension of Time to <i>Respond to Plaintiff's Motion to Alter or Amend Judgment</i> by Defendant Board of County Commissioners of the County of Sedgwick, The. (Eddy, Jonathan) (Entered: 11/08/2022)
11/09/2022	159	ORDER granting 158 Unopposed Motion for Extension of Time to File to <i>Respond to Plaintiff's Motion to Alter or Amend Judgment</i> . Defendants must file response by 11/16/2022. SO ORDERED by Judge Daniel D. Domenico on 11/09/2022. Text Only Entry(ddd1c5,) (Entered: 11/09/2022)
11/16/2022	160	RESPONSE to 155 First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b)</i> filed by Defendants Board of County Commissioners of the County of Sedgwick, The, Sedgwick County Sheriff's Department. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Eddy, Jonathan) (Entered: 11/16/2022)
11/21/2022	161	First MOTION for Extension of Time to File Response/Reply as to 155 First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b) Additional 7 Days to File Reply</i>

		by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 11/21/2022)
11/21/2022	162	ORDER REFERRING MOTION: 161 First MOTION for Extension of Time to File Response/Reply as to 155 First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b) Additional 7 Days to File Reply</i> filed by Peatinna Biggs. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 11/21/2022. Text Only Entry (dddlc5,) (Entered: 11/21/2022)
11/23/2022	163	ORDER granting 161 Motion for Extension of Time to File Response/Reply re 161 First MOTION for Extension of Time to File Response/Reply as to 155 First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b) Additional 7 Days to File Reply</i> . Plaintiff may have an extension of time to submit his reply to the pending Rule 59 and 60 motions to and including November 30, 2022. By Magistrate Judge S. Kato Crews on 11/23/2022. Text Only Entry (skelc1) (Entered: 11/23/2022)
11/30/2022	164	REPLY to Response to 155 First MOTION to Alter Judgment re 153 Clerk's Judgment <i>Under Rules 59(e) and 60(b)</i> filed by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 11/30/2022)
03/06/2023	165	ORDER denying 154 Motion to Clarify. Denying 155 Motion to Alter Judgment. Granting 156 Motion to Amend/Correct/Modify. The Clerk of Court is DIRECTED to amend the final judgment to remove any references to Mr. Hanna in his official capacity. SO ORDERED by Judge Daniel D. Domenico on 3/6/2023. (rkeec) (Entered: 03/06/2023)
03/06/2023	166	AMENDED FINAL JUDGMENT by Clerk on 3/6/2023 in favor of Hollis Ann Whitson, Peatinna Biggs against Thomas (I) Hanna re: 165 Order on Motion to Clarify, Order on Motion to Alter Judgment, Order on Motion to Amend/Correct/Modify, entered by Judge Daniel D. Domenico on 3/6/2023. (rkeec) (Entered: 03/06/2023)
03/17/2023	167	NOTICE OF APPEAL as to 166 Clerk's Judgment, 89 Order on Motion to Dismiss, 165 Order on Motion to Clarify, Order on Motion to Alter Judgment, Order on Motion to Amend/Correct/Modify, by Plaintiffs Peatinna Biggs, Hollis Ann Whitson (Filing fee \$ 505, Receipt Number ACODC-8996671) (Fisher, David) (Entered: 03/17/2023)
03/20/2023	168	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record) (athom,) Modified on 3/20/2023 to attach correct Docket Sheet PDF and to regenerate docket entry (athom,). (Entered: 03/20/2023)
03/20/2023	169	First MOTION for Extension of Time to <i>File Fee Petition Pursuant to Fed. R. CIV. P. 54(d)(2)(B)</i> by Plaintiffs Peatinna Biggs, Hollis Ann Whitson. (Fisher, David) (Entered: 03/20/2023)
03/20/2023	170	ORDER REFERRING MOTION: 169 First MOTION for Extension of Time to <i>File Fee Petition Pursuant to Fed. R. CIV. P. 54(d)(2)(B)</i> filed by Peatinna Biggs, Hollis Ann Whitson. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 3/20/2023. Text Only Entry (dddlc5,) (Entered: 03/20/2023)
03/20/2023	171	USCA Case Number 23-1084 for 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson. (athom,) (Entered: 03/20/2023)
03/20/2023	172	First MOTION for Attorney Fees <i>and costs</i> by Plaintiffs Peatinna Biggs, Hollis Ann Whitson. (Fisher, David) (Entered: 03/20/2023)
03/23/2023	173	ORDER REFERRING MOTION: 172 First MOTION for Attorney Fees <i>and costs</i> filed by Peatinna Biggs, Hollis Ann Whitson. Motion referred to Magistrate Judge S. Kato Crews by Judge Daniel D. Domenico on 3/23/2023. Text Only Entry (dddlc5,) (Entered: 03/23/2023)
04/07/2023	174	ORDER granting 169 Motion for Extension of Time to File re 169 First MOTION for Extension of Time to <i>File Fee Petition Pursuant to Fed. R. CIV. P. 54(d)(2)(B)</i> . Plaintiff may wait to file her Motion for Attorney's Fees until after the resolution of her appeals.

		Consequently, the Court finds as moot her 172 First MOTION for Attorney Fees <i>and costs</i> . By Magistrate Judge S. Kato Crews on 4/7/2023. Text Only Entry (skclcl1) (Entered: 04/07/2023)
04/16/2023	175	TRANSCRIPT ORDER FORM re 167 Notice of Appeal, <i>Transcript not Necessary for this appeal</i> by Plaintiffs Peatinna Biggs, Hollis Ann Whitson (Fisher, David) (Entered: 04/16/2023)
04/17/2023	176	LETTER TO USCA and all counsel certifying the record is complete as to 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson. A transcript order form was filed stating that a transcript is not necessary. (Appeal No. 23-1084) (Text Only Entry) (trvo,) (Entered: 04/17/2023)
07/05/2024	177	USCA ORDER AND JUDGMENT as to 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson : (USCA Case No. 23-1084) (This document is not the Mandate). We REVERSE and REMAND for proceedings in the district court consistent with this opinion. (cmadr,) (Entered: 07/08/2024)
07/05/2024	178	USCA JUDGMENT as to 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson : (USCA Case No. 23-1084) (This document is not the Mandate) (cmadr,) (Entered: 07/08/2024)
09/12/2024	179	ORDER of USCA as to 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson. (USCA Case No. 23-1084). Appellees' petition for rehearing is denied. (cmadr,) (Entered: 09/12/2024)
09/12/2024	180	ORDER of USCA as to 167 Notice of Appeal, filed by Peatinna Biggs, Hollis Ann Whitson : (USCA Case No. 24-1078) (cmadr,) Modified to correct entry on 9/20/2024 (cmadr,). (Entered: 09/12/2024)
09/16/2024	181	ORDER re 180 Mandate of USCA as to 167 Notice of Appeal. The parties are directed to file a joint status report on or before November 15, 2024, explaining how they think this case should proceed in light of the Circuit's opinion. SO ORDERED by Judge Daniel D. Domenico on 9/16/2024. Text Only Entry (dddlc9,) (Entered: 09/16/2024)
09/16/2024	182	Utility Setting/Resetting Deadlines/Hearings: Joint Status Report due 11/15/2024. Text Only Entry (dgumb,) (Entered: 09/16/2024)
09/20/2024	183	MANDATE of USCA as to 178 USCA Order/Opinion/Judgment : (USCA Case No. 23-1084) (cmadr,) (Entered: 09/20/2024)
10/18/2024	184	ORDER. Due to the appointment of former United States Magistrate Judge S. Kato Crews as a United States District Judge, the Clerk of Court is DIRECTED to reassign this case to another United States Magistrate Judge as the referral judge. SO ORDERED by Judge Daniel D. Domenico on 10/18/2024. Text Only Entry (dddlc1,) (Entered: 10/18/2024)
10/18/2024	185	REASSIGNING MAGISTRATE JUDGE. Pursuant to ECF 184 this case has been redrawn to Magistrate Judge Michael E. Hegarty. All future pleadings should be designated as 18-cv-02076-DDD-MEH.(Text Only Entry) (cmadr,) (Entered: 10/18/2024)
10/18/2024	186	AMENDED ORDER REFERRING CASE to Magistrate Judge Michael E. Hegarty. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of Local Civ. R. 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions, and (5) pursuant to Local Civ. R. 16.6 and at the discretion of the Magistrate Judge, convene such early neutral evaluation and/or settlement conferences and direct related procedures as may facilitate resolution of this case without the necessity of a motion or prior authorization of the undersigned. SO ORDERED by Judge Daniel D. Domenico on 10/18/2024. Text Only Entry (dddlc1,) (Entered: 10/18/2024)

10/21/2024	187	MINUTE ORDER by Magistrate Judge Michael E. Hegarty on 10/21/2024. Pursuant to District Judge Daniel D. Domenico's Amended Order Referring Case, ECF 186 , the Court will hold a Settlement Conference on November 18, 2024, at 1:30 p.m. in Courtroom A501 on the fifth floor of the Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado. (jrobe,) (Entered: 10/21/2024)
11/15/2024	188	Joint MOTION for Extension of Time to File Answer or Otherwise Respond <i>JOINT MOTION TO EXTEND DEADLINE TO FILE JOINT STATUS REPORT</i> by Defendants Board of County Commissioners of the County of Sedgwick, The, Sedgwick County Sheriff's Department. (Eddy, Jonathan) (Entered: 11/15/2024)
11/18/2024	189	ORDER granting 188 Motion for Extension of Time. The parties may file their joint status report discussing how they think this case should move forward on or before November 29, 2024. SO ORDERED by Judge Daniel D. Domenico on 11/18/2024. Text Only Entry (ddd9c,) (Entered: 11/18/2024)
11/29/2024	190	NOTICE of Settlement by Defendants Board of County Commissioners of the County of Sedgwick, The, County of Sedgwick, The (Eddy, Jonathan) (Entered: 11/29/2024)
12/02/2024	191	MINUTE ENTRY for proceedings held before Magistrate Judge Michael E. Hegarty: Settlement Conference held on 11/18/2024. (cthom,) (Entered: 12/02/2024)
12/02/2024	192	MINUTE ORDER re: 190 Notice of Settlement. The parties must file appropriate dismissal papers or a joint report regarding the status of settlement on or before January 13, 2025. SO ORDERED by Judge Daniel D. Domenico on 12/2/2024. Text Only Entry (ddd9c,) (Entered: 12/02/2024)
01/03/2025	193	First MOTION to Alter Judgment re 166 Clerk's Judgment, by Plaintiff Peatinna Biggs. (Fisher, David) (Entered: 01/03/2025)
01/06/2025	194	REASSIGNING MAGISTRATE JUDGE. This action is reassigned to Magistrate Judge Cyrus Y. Chung upon his appointment. All future pleadings should reference Magistrate Judge Chung at the end of the civil action number (such as 18-cv-02076-DDD-CYC). Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Magistrate Judge Chung in Courtroom C-205 in the Byron G. Rogers Courthouse, 1961 Stout Street, Denver, CO 80294. If previously directed to contact Chief Magistrate Judge Michael Hegarty or his Chambers, parties shall instead contact Magistrate Judge Chung's Chambers at the following telephone number: 303-335-2761, or email address: <u>Chung_Chambers@cod.uscourts.gov</u> . (Text Only Entry) (evaug) (Entered: 01/06/2025)
01/28/2025	195	MINUTE ORDER re 192 Minute Order. The parties were ordered to file dismissal papers or a joint status report by 1/13/2025 but failed to do so. <u>Accordingly, the parties must file appropriate dismissal papers or a joint report regarding the status of settlement on or before 2/5/2025.</u> SO ORDERED by Judge Daniel D. Domenico on 1/28/2025. Text Only Entry (ddd9c,) (Entered: 01/28/2025)
01/28/2025	196	ORDER granting 193 Motion for Relief from Final Judgment. Pursuant to Fed. R. Civ. P. 60(b) (5), Defendant Thomas Hanna is hereby relieved from the final judgment in this case and any interest that may have accrued thereon. SO ORDERED by Judge Daniel D. Domenico on 1/28/2025. Text Only Entry(ddd9c,) (Entered: 01/28/2025)
01/28/2025	197	Utility Setting/Resetting Deadlines/Hearings: Text Only Entry Dismissal Paper due by 2/5/2025. (tlove,) (Entered: 01/28/2025)
01/28/2025	198	STIPULATION of Dismissal of Party <i>Sedgwick County With Prejudice and Close the Case</i> by Defendants Board of County Commissioners of the County of Sedgwick, The, Sedgwick County Sheriff's Department. (Eddy, Jonathan) (Entered: 01/28/2025)
01/28/2025	199	ORDER DISMISSING CASE pursuant to 198 Stipulation of Dismissal. All remaining claims asserted in this action are DISMISSED WITH PREJUDICE, with each party to bear its own

		fees and costs. SO ORDERED by Judge Daniel D. Domenico on 1/28/2025. Text Only Entry (dddlc9,) (Entered: 01/28/2025)
01/28/2025	200	Civil Case Terminated pursuant to ECF 199 on 28 January 2025. Text Only Entry (cmadr,) (Entered: 01/29/2025)

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